
A BILL FOR AN ACT

RELATING TO ECONOMIC DEVELOPMENT AND TOURISM.

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF HAWAII:

1 SECTION 1. The legislature finds that, procurement and
2 contracting activities conducted in accordance with the State's
3 standard procurement process pursuant to chapter 103D, Hawaii
4 Revised Statutes, typically require months to complete. These
5 delays may result in missed opportunities, particularly when
6 negotiating sponsorship and partnership agreements with national
7 and international sports brands and teams and when executing
8 marketing campaigns that are time-sensitive and tied to seasonal
9 or global events.

10 The legislature further finds that allowing the Hawaii
11 tourism authority to utilize a procurement exemption for sports
12 projects and events and marketing activities will enable the
13 authority to:

- 14 (1) Act swiftly to secure sponsorships and partnerships
15 that enhance the State's brand visibility;



(2) Maintain competitiveness against other destinations that can move faster in securing promotional opportunities; and

(3) Operate efficiently by reducing administrative and bureaucratic delays, allowing staff to focus on implementation.

Accordingly, the purpose of this Act is to exempt the Hawaii tourism authority from the Hawaii Public Procurement Code and all other requirements of law for competitive bidding for contracts and agreements for sports projects and events and marketing activities.

SECTION 2. Chapter 201B, Hawaii Revised Statutes, is amended by adding a new section to part II to be appropriately designated and to read as follows:

"§201B- Exemption of authority from Hawaii public procurement code. The authority shall not be subject to chapter 103D and any and all other requirements of law for competitive bidding for contracts or agreements for:

(1) Sports projects and events; and

(2) Marketing activities."

SECTION 3. New statutory material is underscored.



1 SECTION 4. This Act shall take effect upon its approval.

2



Report Title:

HTA; Hawaii Public Procurement Code; Competitive Bidding;
Exemption; Sports Projects and Events; Marketing; Contracts;
Agreements

Description:

Exempts the Hawaii Tourism Authority's contracts or agreements
for sports projects and events and marketing activities from the
Hawaii Public Procurement Code and all other requirements of law
for competitive bidding. (PROPOSED SD1)

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